

97

BEFORE THE BOARD OF PSYCHOLOGY EXAMINERS
OF THE STATE OF IOWA

IN THE MATTER OF:	)	CASE NO. 94-17
	)	DIA NO. 96DPHPS001
ALLEN C. PIENING,	)	
	)	FINDINGS OF FACT,
RESPONDENT	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On November 12, 1996, the Administrator of the Iowa Board of Psychology Examiners (Board), acting on behalf of the Board, issued a Statement of Charges and Notice of Hearing to Allen C. Piening (Respondent). The Statement of Charges alleged that the Respondent had engaged in conduct which provided the Board with jurisdiction to take disciplinary action, pursuant to Iowa Code section 272C.10 and 645 IAC 240.212(1) "a" and 240.212(5).

The hearing was held on January 31, 1997 at 9:00 a.m. at the Hotel Fort Des Moines, Room 318, 1000 Walnut Street, Des Moines, Iowa. The following members of the Board were present for the hearing: Robert Jones, Ph.D, Chairperson; Dan Rogers, Ph.D.; Scott Shafer, Ph.D.; and Connie Schmett, Public Member. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, presided. Jean Davis, Assistant Attorney General, appeared for the State. The Respondent did not appear, nor was he represented by counsel. The hearing was tape recorded and was open to the public, pursuant to Iowa Code section 272C.6(1) and 645 IAC 240.207.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session, pursuant to Iowa Code section 21.5(1)(f)(1995), to deliberate. A final motion was taken in open session, and the administrative law judge was directed to prepare the Board's decision, in conformance with their deliberations.

THE RECORD

The record includes the Statement of Charges and Notice of Hearing, Order for Continuance, Order Rescheduling Hearing, the testimony of the witness, and the following exhibits:

State Exhibit A:	Respondent's Application for Iowa license
State Exhibit B:	State of Indiana's Order of Emergency Suspension
State Exhibit C:	State of Indiana's Complaint
State Exhibit D:	State of Indiana's Order of Revocation

State Exhibit E: State of Wisconsin's Order of Revocation

FINDINGS OF FACT

1. On January 2, 1990, the Respondent was issued license number 610 to practice psychology in the state of Iowa. The Respondent's license lapsed on June 30, 1992. A lapsed license can be renewed by taking the steps outlined in the Board's administrative rules. (Testimony of Sharon Cook)
2. On June 2, 1993, the Respondent's Indiana psychology certificate was placed on emergency suspension for a period of 90 days. This disciplinary action was based upon the Respondent's false representation on his Indiana license application that he holds a Psy.D. degree from the Illinois School of Professional Psychology in Chicago, Illinois. Subsequently, the Indiana State Psychology Board filed a Complaint against the Respondent, and, following a hearing at which the Respondent failed to appear, revoked his license. The Board concluded that the Respondent engaged in or knowingly cooperated in fraud or material deception in order to obtain a license to practice psychology. (Testimony of Sharon Cook; State Exhibits B-D)
3. On September 27, 1993, the Wisconsin Psychology Examining Board issued a Final Decision and Order which immediately revoked the Respondent's license to practice psychology in Wisconsin, based on the Respondent's false statements in his application for licensure. (Testimony of Sharon Cook; State Exhibit E)
4. The Respondent filed an application for a license to practice psychology in the state of Iowa on February 12, 1987. In signing the application, the Respondent certified that all of the statements contained in the application were true and correct. In his application, the Respondent stated that he had received a Psy.D. doctoral degree from the Illinois School of Professional Psychology on July 31, 1984. (Testimony of Sharon Cook; State Exhibit A)
5. In addition to copies of its disciplinary action against the Respondent, the Indiana Board sent the Iowa Board a copy of a notarized letter it received from the Registrar of the Illinois School of Professional Psychology. In that letter, the Registrar states that the Respondent was a student in the Psy.D. program from September 25, 1978 until February 3, 1981, but he did not receive a degree. (Testimony of Sharon Cook; State Exhibit B)
6. The Statement of Charges and Notice of Hearing was sent by certified mail, return receipt requested, to the Respondent at his last known mailing address in Villa Park, Illinois. The Respondent signed the return receipt card on November 19, 1996. The Order rescheduling the hearing was issued on January 16, 1997 and was

also sent to the Respondent by certified mail, return receipt requested. (Testimony of Sharon Cook Statement of Charges and Notice of Hearing with attached proof of service)

CONCLUSIONS OF LAW

1. 645 IAC 240.206 provides that the department shall prepare the notice of hearing and transmit it to the respondent by certified mail, return receipt requested, at least ten days before the date of the hearing.

The Statement of Charges and Notice of Hearing were served upon the Respondent by certified mail, return receipt requested, more than ten days prior to the hearing. The Order rescheduling the hearing was also transmitted to the Respondent by certified mail, return receipt requested, more than ten days prior to the hearing. The Respondent was properly served with the statement of charges and notice of hearing, in accordance with 645 IAC 240.206.

Iowa Code section 17A.12(3)(1995) provides that if a party fails to appear in a contested case proceeding after proper service of notice, the presiding officer may, if no adjournment is granted, proceed with the hearing and make a decision in the absence of the party.

The Respondent failed to appear for the hearing after proper service of notice. He is bound by this decision of the Board.

2. Iowa Code section 272C.10(1995) [formerly Iowa Code section 258A.10(1987)] provides in relevant part:

272C.10 Rules for revocation or suspension of license.

A licensing board established after January 1, 1978 and pursuant to the provisions of this chapter shall by rule include provisions for the revocation or suspension of a license which shall include but is not limited to the following:

1. Fraud in procuring a license.
...

3. 645 IAC 240.212 provides in relevant part:

645-240.212(258A) Suspension, revocation, or probation.
The board may revoke or suspend a license, or place a licensee on probation for any of the following reasons:

240.212(1) All grounds listed in Iowa Code section 147.55 which are:

a. Fraud in procuring a license.

240.212(5) Revocation, suspension, or other disciplinary action taken by a licensing authority of another state, territory, or country; or failure by the licensee to report in writing to the Iowa board of psychology examiners revocation, suspension, or other disciplinary action taken by a licensing authority of another state, territory, or country; or both.

4. The preponderance of the evidence established that the Respondent, in his application for Iowa licensure as a psychologist, falsely stated that he held a Psy.D. doctoral degree from the Illinois School of Professional Psychology. Credible documentation received from the state of Indiana established that the Respondent had not received a Psy.D. degree from the Illinois School of Professional Psychology. The Respondent committed fraud in procuring his license to practice psychology in Iowa. The Respondent has violated Iowa Code section 272C.10(1) and 645 IAC 240.212(1) "a".

5. The preponderance of the evidence established that the Respondent has had his licenses to practice psychology revoked in the states of Indiana and Wisconsin. The Respondent has violated 645 IAC 240.212(5).

ORDER

IT IS THEREFORE ORDERED, that the license to practice psychology in the state of Iowa, license no. 610, issued to Allen C. Piening, is hereby REVOKED.

IT IS FURTHER ORDERED, that the Respondent shall immediately return his license to the Board office.

IT IS FURTHER ORDERED, that the Respondent shall pay a disciplinary hearing fee of \$75.00 within thirty (30) days of the issuance of this decision. 645 IAC 173.19(2) (1995).

DIA No 96DPHPS001

Page 5

Dated this 12 day of February, 1997.



Robert Jones, Ph.D.

Chairperson

Iowa Board of Psychology Examiners

cc: Jean Davis
Assistant Attorney General

Any appeal to the district court from disciplinary action of the board shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 240.209.

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

ALLEN C. PIENING,

RESPONDENT.

NO. 94-17

STATEMENT OF CHARGES
AND NOTICE OF HEARING

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code sections 17A.11 - 17A.18 (1995); 147.55(1); 272C.3 and 272C.6 and rules found at 645 IAC sections 240.206 and 240.212 and upon a finding of probable cause by the Iowa Board of Psychology Examiners (Board), you are notified that this Statement of Charges is filed against you and a disciplinary hearing is scheduled. The disciplinary hearing is scheduled for the 3rd day of January, 1997, at 1:00 p.m. at the Hotel Ft. Des Moines, Room 318, 1000 Walnut Street, Des Moines, Iowa. At that time, you may appear and defend. If you fail to appear, the hearing may proceed without you and a decision will be rendered in your absence. You have the right to be represented by legal counsel at your expense, present evidence on your behalf, and cross-examine witnesses. The hearing will be presided over by the Board, which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals. The hearing will determine whether discipline should be taken against your license based upon the following allegations:

1. That Respondent is licensed to practice psychology in the state of Iowa and that license number 610 was issued to the Respondent on January 2, 1990.

2. That Respondent's Iowa license is not current and it lapsed on June 30, 1992.

3. That Respondent was also licensed to practice psychology in Indiana.

4. That the Indiana State Psychology Board took disciplinary action against the Respondent and revoked the Respondent's license upon a finding that the Respondent knowingly cooperated in fraud or material deception in order to obtain a license to practice.

5. That the Respondent made fraudulent statements to the Iowa Board of Psychology Examiners in procuring a license.

6. That the Respondent has engaged in conduct providing the Board with jurisdiction to take disciplinary action pursuant to Iowa Code section 272C.10 and IAC sections 240.212(1)(a) and 240.212(5).

The office of the Iowa Attorney General is responsible for the representation of the public interest in these proceedings. Copies of all filings should be served on counsel at the following address:

Jean M. Davis
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 12th day of November, 1996.

Acting on Behalf of the
IOWA BOARD OF PSYCHOLOGY
EXAMINERS



Sharon Cook, Board Administrator

Copies to:

Jean M. Davis
Assistant Attorney General
Hoover Building
L O C A L

Department of Inspections and Appeals
Fair Hearings Division
Lucas Building
L O C A L